

25CHCV00039 25CHCV00039

County: los-angeles

Division: Civil Law and Motion

Department: F43

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Case Number: 25CHCV00039 Hearing Date: July 20, 2026 Dept: F43

Dept. F43

Hearing Date: 07-20-26

Case # 25CHCV00039, Fabian, et
al. v. Joers, et al.

Trial Date: 08-07-28

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES

MOVING PARTY: Plaintiff Estela Yadhira Fabian

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling defendant John Carl Joers to
serve verified responses to plaintiff Fabian's first set of form
interrogatories and to impose monetary sanctions of \$2,335 against defendant
Joers and his counsel of record.

RULING: Motion is granted. The court awards plaintiff Fabian \$1,310 in
monetary sanctions.

SUMMARY OF ACTION

The personal injury arises from a motor vehicle collision in which defendant John Carl Joers rear-ended plaintiffs Estela Yadhira Fabian and Omar Morales. Plaintiffs allege defendant Joers was driving a vehicle owned by defendant McLogan Supply Co., Inc. and acting within the scope of his employment with McLogan Supply. On January 6, 2025, Plaintiffs filed a complaint against both defendants, asserting negligence, vicarious liability, and negligent entrustment. McLogan Supply Co. answered on March 24, 2025, and Joers answered on November 6, 2025.

On April 7, 2026, plaintiff Fabian electronically served defendant Joers with her first set of form interrogatories. (Declaration of Taylor Scott Kruse ¶ 1, Exh. 1.) Responses were due May 11, 2026. On May 12, 2026, plaintiff Fabian extended the deadline for defendant Joers to serve objection-free responses to May 15, 2026. (Id. ¶ 3, Exh. 2.) No responses were ever served.

On June 10, 2026, plaintiff Estela Yadhira Fabian filed the instant motion to compel defendant John Carl Joers's objection-free, verified responses to her first set of requests for production. Plaintiff Fabian also seeks to impose \$2,335 in monetary sanctions against defendant Joers and his counsel of record, Shelby Clark and Hinshaw & Culbertson, LLP. No opposition was filed.

ANALYSIS

A. Compelling Responses to Form Interrogatories

A propounding party may move to compel responses to form interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within

these time limits waives objections.

(Code Civ. Proc., § 2030.290, subd. (a).)

The court has reviewed the moving papers and finds that plaintiff Fabian properly served her requests for production and granted defendant Joers a deadline extension. However, defendant Joers has failed to serve any responses. Moreover, defendant Joers does not oppose plaintiff Fabian's motion and provide a substantial justification for failing to provide responses.

Therefore, the court grants plaintiff Estela Yadhira Fabian's motion to compel defendant John Carl Joers's responses to her first set of form interrogatories.

Defendant Coers is ordered to serve objection-free, verified responses within 30 days of the issuing of this order.

B. Sanctions

Plaintiff Fabian asks the court to impose monetary sanctions in the amount of \$2,335 against defendant Joers and his counsel of record, Shelby Clark with Hinshaw & Culbertson, LLP, jointly and severally. (Kruse Decl. ¶ 12.)

The court must impose sanctions against any party who "unsuccessfully makes or opposes a motion to compel responses to interrogatories unless, it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).)

Plaintiff Fabian is entitled to sanctions for the seasons stated above in Section A.

Plaintiff's counsel charges \$650 per hour. (Kruse Decl. ¶ 11(a).) The request includes: 1.5 hours preparing the motion and supporting papers—\$975; 1.0 hour reviewing and replying to an opposition—\$650; 1.0 hour preparing for and attending the motion hearing remotely—\$650; and a \$60 filing fee.

The court finds the requested hourly rate is excessive,

considering counsel provides no information concerning his experience in order to support the rate. The court lowers attorney Kruse's hourly rate to \$500 per hour. Finally, the court reduces the time requested by 1.0 hour because no opposition was filed.

Therefore, the court awards plaintiff Estela Yadhira Fabian monetary sanctions in the reduced amount of \$1,310: 1.5 hours preparing the motion and supporting papers—\$750; 1.0 hour preparing for and attending the motion hearing remotely—\$500; and a \$60 filing fee.

CONCLUSION and ORDER

The court grants plaintiff Estela Yadhira Fabian's motion to compel defendant John Carl Joers's responses to her first set of form interrogatories.

The court orders defendant Joers to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The court awards plaintiff Estela Yadhira Fabian \$1,310 in monetary sanctions. Defendant Joers and his attorney of record are ordered to pay plaintiff's counsel within thirty (30) days of the issuing of order.

Plaintiff Estela Yadhira Fabian to give notice.